

25VECV02224 25VECV02224

County: los-angeles

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Case Number: 25VECV02224 Hearing Date: July 14, 2026 Dept: U

SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR THE COUNTY OF
LOS ANGELES - NORTHWEST DISTRICT

PHUC HUYNH, an
individual,

Plaintiff,

vs.

THOMAS PHAM, an individual; and DOES 1-10,
inclusive,

Defendants.

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CASE NO: 25VECV02224

[TENTATIVE] RULING RE:

DEFENDANT/CROSS-COMPLAINANT'S MOTIONS FOR SUMMARY JUDGMENT OR, ALTERNATIVELY,
FOR SUMMARY ADJUDICATION

Dept. U

8:30 a.m.

July 16, 2026

I.

BACKGROUND

This case arises from an alleged wrongful
attempted foreclosure of real property located at 7107 Sunnybrae Avenue in
Winnetka (the "Property").

On April 22, 2025, Plaintiff Phuc
Huynh ("Plaintiff" or "Huynh")
filed his complaint against Defendant Thomas Pham ("Pham").

On August 28, 2025, Huynh filed his first
amended complaint (the "FAC") against Pham, seeking/alleging: (1) wrongful
attempted foreclosure; (2) preliminary injunction; and (3) declaratory relief.

On September 11, 2025, Cross-Complainant Pham filed his cross-complaint against Cross-Defendants Huynh and Assent Mortgage LLC ("Assent"), seeking/alleging: (1) judicial foreclosure; and (2) deficiency judgment.

On November 25, 2025, the Clerk entered Assent's default.

On April 24, 2026, Pham filed his motion for summary judgment/summary adjudication as to the FAC.

On April 27, 2026, Pham filed his motion for summary judgment/summary adjudication as to his cross-complaint.

On June 22, 2026, Huynh filed his opposition briefs.

On July 22, 2026, Pham filed his reply briefs.

II.

LEGAL STANDARD

The purpose of a motion for summary judgment "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." *¿ Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843; Code Civ. Proc., § 437c (c). *¿* "[Section 437c] requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." *¿ Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.

A defendant moving for summary judgment meets its initial burden by showing that one or more elements of the plaintiff's cause of action cannot be established. *¿* Code Civ. Proc, § 437c (p)(2). *¿* The burden then shifts to the responding party to prove the existence of a material fact issue as to the defendant's defense against its causes of

action.¿ Avivi v. Centro Medico Urgente Med. Ctr. (2008) 159 Cal.App.4th 463, 467.¿ If the responding party cannot refute the movant's defense, summary judgment should be granted.¿ Ibid.

III.

OBJECTIONS TO EVIDENCE
AND REQUESTS FOR JUDICIAL NOTICE

Both Pham and Huynh object to evidence submitted by the other side in support of or in opposition to both motions. For purposes of the instant motion for summary judgment, both sides' objections are overruled. See Reid v. Google, Inc. (2010) 50 Cal.4th 512, 531-533 (written evidentiary objections made before hearing avoid waiver regardless of trial court determination as to admissibility of evidence subject to said objections). Where relevant, the Court's analysis of the parties' evidentiary objections has been incorporated herein.

Pham requests that the Court take judicial notice of the following copies of documents:

A. A Grant Deed recorded on
February 21, 2012;

B. A Deed of Trust
recorded on December 10, 2019;

C. A Note Secured by Deed
of Trust (Straight Note), recorded on December 10, 2019;

D. A Deed of Trust
recorded on May 20, 2022;

E. A Notice of Default
recorded on January 28, 2025;

F. The FAC;

G. Pham's Cross-Complaint;
and

H. A Notice of Rescission

of Notice of Default, recorded on February 26, 2026.

Exhibits E, F, and G are missing from the request for judicial notice. While the Court can still take judicial notice of Exhibits F and G because they are pleadings filed with the Court, the Court cannot take judicial notice of the missing Exhibit E. Otherwise, the foregoing copies of documents are judicially noticeable under Evidence Code section 452, and the Court takes judicial notice as requested.

IV.

DISCUSSION

Pham moves for summary judgment/summary adjudication as to the FAC and as to his cross-complaint. The motions are denied.

a.

Summary of Allegations in the FAC

The

First Amended Complaint alleges as follows:

· Huynh

became the Property's owner by way of a Grant Deed recorded on February 21, 2012;

· beginning

around January of 2020, his domestic partner, Kim Nguyen, received funds from Pham;

· in

May 2022, he was asked to sign a Deed of Trust dated March 21, 2022, securing a \$700,000.00 obligation;

· the

deed was recorded on May 20, 2022;

· he

never received the \$700,000.00 from Pham; and.

· whatever

funds Ms. Nguyen did receive from Pham were fully repaid by Ms. Nguyen before January 2025.

(FAC, ¶¶ 4-6.)

Despite
the foregoing, Huynh further alleges:

· a

Notice of Default and Election to Sell Under Deed of Trust was recorded on January 28, 2025, initiating a nonjudicial foreclosure against the Property;

· although

the Notice of Default claimed Huynh owed money to Pham as of January 14, 2025, Huynh owes no sum of money to Pham under any promissory note or otherwise; and

· all

obligations owed to Pham have already been paid or performed.

(FAC, ¶¶ 7-8.)

Huynh
also pleads:

· Pham

engaged in an illegal scheme designed to enable a trustee's sale and thereby wrongfully gain title to the Property;

· the

Notice of Default was legally insufficient and violated California law, entitling him to injunctive relief against the trustee's sale and to compensatory damages;

· Pham

acted with oppression, fraud, malice, and willfulness, entitling him to punitive damages under Civil Code section 3294;

· he

is the Property's current owner and that any sale would be based on an inaccurate Deed of Trust and a default that never actually occurred;

· an

actual controversy exists as to whether Huynh owes any money to Pham and as to the validity of the Deed of Trust and Notice of Default. (FAC, ¶¶ 9-21.)

b.

Review of Allegations in the
Cross-Complaint

Pham's

Cross-Complaint alleges:

· on

or about March 21, 2022, he loaned Huynh the principal sum of \$700,000.00 pursuant to a written promissory note;

· the

loan's repayment was secured by a Deed of Trust recorded against the Property on May 20, 2022, naming Pham as beneficiary and Huynh as trustor;

· Assent

holds a separate, senior Deed of Trust recorded on December 10, 2019, securing a Federal Housing Administration loan of \$395,988.00 made to Huynh, and that Pham's Deed of Trust constitutes a valid and enforceable second lien on the Property;

· Huynh

defaulted on the loan, as evidenced by a Notice of Default recorded on January 28, 2025.

· despite

written demand and all required notice, Huynh failed and refused to cure the default or repay the outstanding loan balance.

(Cross-Complaint, ¶¶ 9-15.)

Pham

seeks judicial foreclosure against Huynh. Pham pleads: Huynh is in default under the terms of the loan and Deed of Trust, Assent is a necessary party to the action by virtue of its senior lien, and Pham is entitled to a decree of judicial foreclosure ordering sale of the Property with proceeds applied to the

outstanding loan balance, including accrued interest, fees, and costs. (Cross-Complaint, ¶¶ 16-19.)

Pham

pleads that the total amount owed, including principal, interest, late fees, and recoverable costs, exceeds the anticipated value of the property at a foreclosure sale. Pham pleads no anti-deficiency protections bar such a claim because the loan was not a purchase-money loan and the foreclosure is being pursued judicially. Pham pleads that, should sale proceeds prove insufficient to satisfy the full \$700,000.00 owed, he is entitled to a deficiency judgment for the remaining balance to the extent permitted by law. (Cross-Complaint, ¶¶ 20-23.)

c.

Review of Pham's Submitted Evidence

The

Court has reviewed and considered the following evidence submitted by Pham in support of his motions:

- Pham's declaration;
- The declaration of Matthew Kiene, counsel for Pham;
- Documents of which the Court has already taken judicial notice (see above);
- A copy of a payment schedule (Exh. 3);
- Copies of Huynh's notifications regarding default (Exh. 5);
- A copy of a Comparative Market Analysis (Exh. 7); and
- Copies of Huynh's discovery responses (Reply Exhs. A, B).

Pham's

submitted evidence shows that Huynh is the Property's owner. On or about March 21, 2022, Huynh executed a promissory note in the principal sum of \$700,000.00 in favor of Pham, which was notarized on May 9, 2022. Pham possesses the original Note and no assignment of it has occurred. Pham says he disbursed the full amount of the Note to Huynh in multiple installments between March 2020 and August 2022. The Note was secured by a notarized deed of trust executed by Huynh and recorded against the Property on May 20, 2022 (the "DoT-2"), the existence of which Huynh concedes. (SUMF re: FAC, #1-4; SUMF re: Cross-Complaint, #1-3.)

Huynh

first defaulted on his repayment obligations under the Note on May 1, 2024. Pham recorded a Notice of Default on January 28, 2025, due to Huynh's failure to timely repay the Note. As of the date of that notice, January 14, 2025, Pham says Huynh owed at least \$37,375.00 in arrears. Pham says he issued all required contractual and statutory notices before initiating foreclosure proceedings. (SUMF re: FAC, #5-8; SUMF re: Cross-Complaint, #4-7.)

The

FAC alleges no written release, satisfaction, modification, or assignment of the Note from Pham to Huynh or any other party.

Huynh provides documentary evidence of full repayment or tender of the obligations under the Note. (SUMF re: FAC, #9-10; SUMF re: Cross-Complaint, #8-9.)

Pham

says he is contractually and statutorily authorized to enforce the DoT-2, foreclose on the Property, and seek judicial foreclosure and a deficiency judgment. As of the filing of the respective motions, Pham says Huynh remains \$796,468.75 in arrears under the Note, and the Property has an approximate value of \$895,344.00. (SUMF re: FAC, #11; SUMF re: Cross-Complaint, #10.)

d.

Review of Huynh's Submitted Evidence

The

Court has reviewed and considered the following evidence submitted by Huynh in opposition to the motions:

· The

declaration of Craig Forry, counsel for Huynh;

· The

declaration of Ms. Nguyen, Huynh's domestic partner;

· Copies

of documents of which the Court has already taken judicial notice;

· Copies

of checks from Pham's bank accounts (Exh. B);

· A

copy of a chart summarizing Nguyen's payments to Pham (Exh. C);

· A

copy of a screenshot of a Facebook Messenger conversation between Nguyen and Pham (Exh. D);

· A

Notice of Default letter dated January 8, 2025 (Exh. E);

· Copies

of Huynh's discovery demands (Exh. F);

· Copies

of emails from December of 2025 (Exh. G);

· Copies

of documents Pham produced during discovery (Exh. H);

· Copies

of Huynh's amended discovery responses (Exh. I); and

· A

copy of Huynh's answer to the cross-complaint (Exh. J).

Huynh's

submitted evidence shows that Pham disbursed the Note proceeds to Ms. Nguyen, not to Huynh. Huynh's submitted evidence

shows Ms. Nguyen repaid Pham at least part of the money she received. Huynh maintains he never owed and does not owe any money to Pham, never defaulted on any payment obligation, and is not

\$796,468.75 (or any amount) in arrears under the Note. (Disputed SUMF re: FAC, #3, 5-8, 10-11; Disputed SUMF re: Cross-Complaint, #3-7, 9-10.)

Huynh

asserts that he has provided documentary evidence of full repayment of all sums distributed to Ms. Nguyen. (Disputed SUMF re: FAC, #10; Disputed SUMF re: Cross-Complaint, #9.)

Huynh

disputes that all required contractual and statutory notices were issued before foreclosure proceedings began. Huynh asserts that Pham is not contractually or statutorily authorized to enforce the DoT-2 or foreclose on the Property. (Disputed SUMF re: FAC, #8, 11; Disputed SUMF re: Cross-Complaint, #7, 10.)

e.

The motions are denied because several triable fact issues underlie Pham's position that the \$700,000.00 debt is enforceable against Huynh.

Defendant moves for summary judgment or, alternatively, for summary adjudication of issues in the FAC and in the cross-complaint.

While there are several competing causes of action at issue in both the FAC and the cross-complaint, each of the parties' claims depends on whether the subject promissory note is enforceable against Huynh despite his position that he never received \$700,000.00 from Pham. The parties' claims also depend on Pham's position that the note is enforceable despite evidence that Ms. Nguyen has been paying down Huynh's debt to Pham.

As to whether the note is enforceable despite Huynh's testimony that he never personally received \$700,000.00 from Pham, Pham asserts that the note is conclusive evidence of an enforceable debt because it includes recitations regarding a "value received." Pham argues the parol evidence rule bars Huynh from contradicting the note's recital of consideration. See Civ. Code, § 1856 (where parties reduce agreement to final written expression of its terms, that writing cannot be contradicted by evidence of prior or contemporaneous oral agreement). The Court disagrees.

California law treats a written recital of

consideration as presumptive, not conclusive.

See Civ. Code, § 1614 (“written instrument is presumptive evidence of a consideration”). “The burden of showing a want of consideration sufficient to support an instrument lies with the party seeking to invalidate or avoid it.” Civ. Code, § 1615. Civil Code sections 1614 and 1615 support Huynh’s position that he should be able to present evidence as to the lack of consideration paid in this case. Such evidence as to whether there was consideration paid is not the same thing as evidence regarding a prior or contemporaneous oral agreement and is thus not barred by the parol evidence rule.

Huynh’s position that there was no consideration paid to Huynh is supported by Ms. Nguyen’s declaration, which includes copies of bank/check records and a text message from Pham referencing a balance Ms. Nguyen owed him. Ms. Nguyen attests that Huynh knew neither of her affair with Pham, nor that Huynh was coerced into signing a sham deed of trust for the purpose of Pham refraining from revealing to Huynh that he was having an affair with Ms. Nguyen.

The Court notes that Huynh’s version of events is somewhat suspect. For example, why did Huynh agree to sign the deed of trust in the first place given that he was never paid \$700,000.00? Additionally, why does the parties’ evidence indicate that Ms. Nguyen, in fact, received funds from Pham if the promissory note’s sole purpose was to induce Pham to refrain from revealing the affair to Huynh? Even so, Huynh’s submitted evidence at least raises a triable fact issue as to whether Huynh ever received any funds related to the promissory note and thus whether the note fails for lack of consideration.

If the evidence ultimately shows that Pham paid the entire amount of the note to Ms. Nguyen, Pham may be able to make a strong argument that such a payment to Huynh’s domestic partner is sufficient to constitute consideration. However, rather than supporting Pham’s legal argument, such an issue presents yet another factual question underlying the consideration issue. Such factual questions regarding payments made to Ms. Nguyen and whether they count as consideration for Huynh’s promissory note are not sufficiently addressed in the parties’ briefs. Thus, Pham is not entitled to summary judgment or summary adjudication of issues that depend on him proving that the

\$700,000.00 promissory note does not fail for lack of consideration.

As to whether the \$700,000.00 note is enforceable against Huynh despite evidence that Ms. Nguyen has been paying down Huynh's debt to Pham in the interim, Pham argues, "that theory is legally immaterial: it does not establish any release, satisfaction, or assignment of Plaintiff's Note, and the route the funds traveled does not erase Plaintiff's obligation on the instrument he executed." (Reply, p. 2:17-20.) Again, the Court disagrees.

The parties' evidence shows Ms. Nguyen is Huynh's domestic partner. Ms. Nguyen's declaration includes copies of checks showing that since the subject note was recorded on March 21, 2022, she has been paying Pham incremental payments of thousands of dollars. Ms. Nguyen's declaration also includes a ledger showing she has paid Pham at least \$308,544.48. Ms. Nguyen's declaration plainly states that she believed all the funds she paid to Pham were made as repayment for the \$700,000.00 note.

If the subject promissory note is, in fact, enforceable against Huynh, there is at least a triable fact issue as to whether Ms. Nguyen's ongoing payments of hundreds of thousands of dollars to Pham constitutes at least partial satisfaction of her domestic partner's debt. While there may still be a partial default as to the difference between the amount paid by Pham to Ms. Nguyen and the amount Ms. Nguyen has repaid to Pham, it is unclear based on the parties' evidence what that precise default may be.

In sum, there are several triable fact issues underlying Pham's position that the \$700,000.00 debt is enforceable against Huynh. These include whether the money was ever paid to Huynh in the first place; whether money paid to Huynh's domestic partner (Ms. Nguyen) is sufficient evidence of consideration; and whether payments made by Ms. Nguyen in the interim should count as credit towards any debt owed by Huynh to Pham. The motions are denied.

Because

the Court has determined that the motions must be denied because several triable fact issues underlie Pham's position that the \$700,000.00 debt is enforceable against Huynh, the Court need not examine the parties' arguments regarding the sufficiency of any notice of default.

V.

CONCLUSION

The
Court DENIES Defendant
Thomas Pham's motion for summary judgment/summary adjudication as to the First Amended Complaint.

The
Court DENIES Cross-Complainant
Thomas Pham's motion for summary judgment/summary adjudication as to his Cross-Complaint.

Plaintiff/Cross-Defendant Phuc
Huynh is ORDERED to give notice.

DATED: July 16, 2026

Lee
Arian

Judge of the
Superior Court